

SUMMARY ACTION MINUTES

REGULAR MEETING OF THE BOARD OF SUPERVISORS ORANGE COUNTY, CALIFORNIA

Tuesday, September 29, 2026, 9:00 A.M.

BOARD HEARING ROOM, FIRST FLOOR
400 W. Civic Center Drive
Santa Ana, California

DOUG CHAFFEE
CHAIR
Fourth District

KATRINA FOLEY
VICE CHAIR
Fifth District



JANET NGUYEN
SUPERVISOR
First District

VICENTE SARMIENTO
SUPERVISOR
Second District

DONALD P. WAGNER
SUPERVISOR
Third District

ATTENDANCE: All Present

EXCUSED: None

PRESENT:	INTERIM COUNTY EXECUTIVE OFFICER	KC ROESTENBERG
	COUNTY COUNSEL	LEON PAGE
	CLERK OF THE BOARD	ROBIN STIELER

PRESENTATIONS/INTRODUCTIONS (9:00 A.M.)

Chair Chaffee and Supervisor Sarmiento presented a resolution proclaiming September 15 - October 15, 2026 as "Hispanic Heritage Month." ([Click to View Files](#))

Chair Chaffee and Supervisor Sarmiento presented a resolution proclaiming September 2026 as "Recovery Awareness Month". ([Click to View Files](#))

Supervisor Wagner and Supervisor Nguyen presented a resolution proclaiming September 2026 as "Service Clubs Month" ([Click to View Files](#))

SUMMARY ACTION MINUTES

INVOCATION AND PLEDGE OF ALLEGIANCE

INVOCATION BY: Supervisor Wagner, Third District, gave the invocation

PLEDGE OF ALLEGIANCE BY: Vice Chair Foley, Fifth District, invited Abi Mesel, graduate of UC Irvine Opera Vocal Arts program and teaching artist from the Arts and Learning Conservancy in Costa Mesa, to sing the National Anthem, and Vice Chair Foley led the assembly in the Pledge of Allegiance

CONSENT CALENDAR (Items 1-13)

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY SUPERVISOR WAGNER, APPROVED AS RECOMMENDED WITH THE EXCEPTION OF ITEM 13 WHICH WAS PULLED FOR DISCUSSION AND SEPARATE VOTE

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

BOARD APPOINTMENTS

1. **Chair Chaffee - Acting as Orange County Housing Authority** - Housing and Community Development Commission - Reappoint Dr. Tiffany Mitchell, Tustin, Cecilia Hupp, Brea and Carla Wilkerson, Dana Point and appoint Johnny Hieu Nguyen, Garden Grove, Ben Wong, Seal Beach, and David Smith, Placentia, for terms ending 6/30/28 ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

ELECTED DEPARTMENTS

2. **Auditor-Controller** - Receive and file Annual Report of Refunds for FY 2025-26 - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

3. **Auditor-Controller** - Receive and file Annual Report of Revolving Funds for FY 2025-26 - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

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4. **Auditor-Controller** - Receive and file Fund/Budget Control Semi-Annual Report for FY 2025-26 - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

5. **Auditor-Controller** - Receive and file Annual Reports of Cash Difference Funds, Cash Shortages and Overage Funds for FY 2025-26 - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

COUNTY DEPARTMENTS

6. **Clerk of the Board** - Approve proposed amendments to the Conflict of Interest Code Designated Filer Exhibits for Anaheim Elementary School District - Districts 2 and 4 ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

7. **Clerk of the Board** - Approve proposed amendments to the Conflict of Interest Code Designated Filer Exhibits for Children & Families Commission of Orange County - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

8. **Clerk of the Board** - Approve proposed amendments to the Conflict of Interest Code Designated Filer Exhibits for South Coast Water District - District 5 ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

9. **Clerk of the Board** - Approve proposed amendments to the Conflict of Interest Code Designated Filer Exhibits for Assessor - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

SUMMARY ACTION MINUTES

10. **County Executive Office** - Approve revised Bylaws of Commission to Address Homelessness to establish Commission's authority to create subcommittees - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

11. **Internal Audit** - Receive and file Executive Summary of Internal Audit Reports for April - June 2026; and receive and file Annual Report on Independence for FY 2025-26 - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

12. **OC Public Works** - Receive and file 2025 Orange County Annual Crop Report and Economic Contributions of Orange County Agriculture - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

13. **Registrar of Voters** - Receive and file Certificate of Nominees to be appointed in lieu of election on 11/3/26 for qualified candidates to special district offices for which they filed a declaration of candidacy - All Districts ([Click to View Files](#))

RECEIVED AND FILED; SUPERVISOR NGUYEN NOTED OBJECTION TO APPOINTEES FOR THE ORANGE COUNTY WATER DISTRICT, DIVISIONS 1 AND 5

END OF CONSENT CALENDAR

SUMMARY ACTION MINUTES

DISCUSSION ITEMS (Items 14-S36G)

ELECTED DEPARTMENTS

14. **Sheriff-Coroner** - Approve continuation of Local Emergency for 2026 Garden Grove Hazardous Material Incident; and set review to determine continuing need for emergency action for 11/17/26, 9:30 a.m. and every 60 days thereafter - All Districts (Continued from Special Meeting 5/27/26, Item 1; 6/23/26, Item 59; 8/11/26, Item 28) ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR NGUYEN, SECONDED BY SUPERVISOR SARMIENTO, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

15. **Sheriff-Coroner** - Approve amendment 4 to contract MA-060-23011076 with CentralSquare Technologies LLC for software, subscriptions, associated implementation services and support of Inform and Vision Field Based Reporting, 11/15/26 - 11/14/27 (\$126,477; cumulative total \$2,074,135); and authorize County Procurement Officer or Deputized designee to execute amendment - All Districts ([Click to View Files](#))

ON THE MOTION OF VICE CHAIR FOLEY, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

16. **Sheriff-Coroner** - Approve amendment 4 to contract MA-060-23010118 with Intoximeters, Inc., for Alcosensor parts, accessories, and repairs, 11/29/26 - 11/28/27 (\$140,000; cumulative total \$534,323); and authorize County Procurement Officer or Deputized designee to execute amendment - All Districts ([Click to View Files](#))

ON THE MOTION OF VICE CHAIR FOLEY, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

17. **Sheriff-Coroner** - Approve model contract for Cyber Program Administrator, one-year term (\$300,000); renewable for four additional one-year terms; **select** and approve **respondent and alternate respondent** from solicitation results list and authorize County Procurement Officer or Deputized designee to negotiate and execute contract under certain conditions - All Districts ([Click to View Files](#))

ON THE MOTION OF VICE CHAIR FOLEY, SECONDED BY SUPERVISOR NGUYEN, APPROVED ITEM AS RECOMMENDED; SELECTED LARSON CORPORATION AS RESPONDENT AND WEST ADVANCED TECHNOLOGIES INC (WAT) AS ALTERNATE RESPONDENT

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

COUNTY DEPARTMENTS

SUMMARY ACTION MINUTES

18. **County Executive Office** - Approve proposed response to FY 2025-26 Grand Jury Report "California Housing Mandates: The Unintended Reshaping of Orange County Neighborhoods" - All Districts (Continued from 8/11/26, Item 34; 9/15/26, Item 7) ([Click to View Files](#))

ON THE MOTION OF CHAIR CHAFFEE, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Wagner and Chaffee

Noes: Sarmiento and Foley

19. **County Executive Office** - Approve model contract for emergency shelter operations and services for individuals, families, and survivors (\$1,919,680) and transitional aged youth (\$872,566), 1/1/27 - 6/30/28; renewable for three additional one-year terms; **select** and approve **respondents** from solicitation results list; and authorize County Procurement Officer or Deputized designee to exercise cost contingency increase not to exceed 10% under certain conditions and negotiate and execute contracts under certain conditions - All Districts ([Click to View Files](#))

ON THE MOTION OF VICE CHAIR FOLEY, SECONDED BY SUPERVISOR NGUYEN, APPROVED AS AMENDED REMOVING ILLUMINATION HEALTH + HOME FROM SOLICITATION RESULTS LIST FOR PROGRAM A (EMERGENCY SHELTER OPERATIONS AND SERVICES FOR INDIVIDUALS, FAMILIES AND SURVIVORS)

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

20. **County Executive Office** - Approve amendment 4 to contract MA-017-25011406 with Project Kinship, Inc. for corrections cohort care coordination services, 11/1/26 - 6/30/27 (\$297,619; cumulative total \$1,097,620); and authorize County Procurement Officer or Deputized designee to execute amendment - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY VICE CHAIR FOLEY, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

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21. **County Executive Office** - Approve FY 2026-27 September Budget Update report; approve related budget adjustments; approve addition and revision of events to FY 2026-27 Master Events Calendar and make related findings under Government Code Section 26227; adopt resolution establishing County Business Travel and Meeting Policy, superseding Resolution 26-025; direct Auditor-Controller to close various Santa Margarita and Rancho Santa Margarita CFD funds and transfer any residual balances to Miscellaneous, Budget Control 004; and approve new and revised title codes, title descriptions, classification specifications and revised salary schedules and set or adjust pay grades and recruiting steps for various positions and delete obsolete classifications as summarized, effective 10/2/26 - All Districts (R.A.s 1 and 4 - 8 4/5 vote of members present) ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR NGUYEN, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS AMENDED TO DELETE RECOMMENDED ACTION #3; DIRECT COUNTY EXECUTIVE OFFICE TO MEET WITH EACH BOARD OFFICE REGARDING CHANGES TO THE COUNTY BUSINESS TRAVEL AND MEETING POLICY

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

22. **County Executive Office** - Approve FY 2025-26 Year-End Budget Report; approve related budget adjustments and reserve changes; and receive and file FY 2025-26 Charitable Organization Summary Report - All Districts (R.A.s 1, 3 and 4 4/5 vote of members present) ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR WAGNER, SECONDED BY SUPERVISOR NGUYEN, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

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23. **County Executive Office** - Approve grant applications/awards submitted by District Attorney, Health Care Agency, OC Community Resources, OC Waste & Recycling, Probation and Sheriff-Coroner; retroactive grant applications/awards submitted by OC Public Works and Sheriff-Coroner and ratified grant application/award submitted by Social Services Agency in 9/29/26 grant report and other actions as recommended; adopt resolutions authorizing District Attorney or designee to execute grant award agreements and amendments with California Office of Traffic Safety for Alcohol and Drug Impaired Driver Vertical Prosecution Program (\$1,180,000) and California Traffic Safety Resource Prosecutor Training Network (\$1,640,000), FFY 2026-27; adopt resolution authorizing Health Care Agency Director or designee to submit application to Department of Resources Recycling and Recovery for Waste Tire Enforcement Grant 34th Cycle and execute amendments and related documents; adopt resolution approving State Standard Agreement CF-2627-22 with California Department of Aging for CalFresh Outreach Program, 10/1/26 – 9/30/28 (\$212,984) and authorizing OC Community Resources Director or designee to execute agreement, amendments and related documents under certain conditions; adopt resolution authorizing Sheriff-Coroner or designee to execute, submit application and grant assurance to California Office of Emergency Services for FY 2025 Homeland Security Grant Program (\$3,010,955) and approving related actions under certain conditions; adopt resolution authorizing Sheriff-Coroner or authorized designee to accept grants and execute related documents and amendments with California Department of Parks and Recreation, Division of Boating and Waterways for surrendered and abandoned vessel exchange program (\$40,000); and adopt resolution authorizing Social Services Agency Director or designee to apply, accept, execute application, and amendments and deliver any related documents for Housing Navigation and Maintenance Program, Round 5 (\$729,397), Transitional Housing Program (THP), Round 8 (\$1,292,338) and THP-Plus Housing Supplemental Program Round 6 (\$199,077) from California Department of Housing and Community Development - All Districts ([Click to View Files](#))

ON THE MOTION OF VICE CHAIR FOLEY, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley
Resolution No(s). 26-068, 26-069, 26-070, 26-071, 26-072, 26-073

24. **County Executive Office** - Approve recommended positions on introduced or amended legislation and/or consider other legislative subject matters - All Districts ([Click to View Files](#))

BOARD ORDER, DELETED

25. **County Executive Office** - Approve amendments to various contracts under Orange County Contract Cost Reduction Program; and authorize County Procurement Officer or Deputized designee to execute amendments - All Districts ([Click to View Files](#))

ON THE MOTION OF VICE CHAIR FOLEY, SECONDED BY SUPERVISOR SARMIENTO, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

S U M M A R Y A C T I O N M I N U T E S

26. **County Executive Office - Acting as Community Facilities District 2025-1 (Rienda Phase 3) -** Adopt resolution accepting unanimous consents and approvals of property owners to annex property as Improvement Area No. 2 of Community Facilities District No. 2025-1 (Rienda 3); and making related findings - District 5 ([Click to View Files](#))

ON THE MOTION OF VICE CHAIR FOLEY, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley
Resolution No(s). 26-074

27. **Health Care Agency -** Approve amendment 1 to renew contract MA-042-24010451 with Cority Software Inc. for Employee Health Software Solution System, 1/1/27 - 12/31/28 (\$322,137; cumulative total \$700,880); and authorize County Procurement Officer or Deputized designee to execute amendment - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY VICE CHAIR FOLEY, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

28. **Health Care Agency -** Approve master and individual contracts MA-042-26010348 with various providers of children and youth full service partnership with high fidelity wraparound services, 10/16/26 - 6/30/29 (\$110,000,000); renewable for one additional two-year term; and authorize County Procurement Officer or Deputized designee to exercise cost contingency increase not to exceed 10% under certain conditions and execute contracts - All Districts (Continued from 9/15/26, Item 10) ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

29. **Health Care Agency -** Approve Master and individual contract MA-042-26010789 with Aliso Ridge Behavioral Health, LLC for inpatient behavioral health services (aggregate total \$79,999,998); approve Master and individual contracts MA-042-26011017 with various providers of Medi-Cal mental health managed care psychiatric inpatient hospital services (aggregate total \$6,000,000); 11/1/26 - 6/30/29; renewable for one additional two-year terms; authorize County Procurement Officer or deputized designee to exercise cost contingency not to exceed 10% and execute contracts under certain conditions - Districts 1, 2, 4 and 5 ([Click to View Files](#))

ON THE MOTION OF VICE CHAIR FOLEY, SECONDED BY SUPERVISOR SARMIENTO, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

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30. **OC Community Resources** - Approve subordinate contracts MA-012-27010053 with US Metro Group, Inc. (\$898,752) and MA-012-27010047 with Universal Building Maintenance LLC dba Allied Universal Janitorial Services (\$586,163) for janitorial services at various locations, 11/1/26 - 8/31/27; authorize County Procurement Officer or deputized designee to execute contracts; and make California Environmental Quality Act (CEQA) exemption findings under CEQA Guidelines Section 15301 - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR WAGNER, SECONDED BY VICE CHAIR FOLEY, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

31. **OC Community Resources** - Approve amendment 2 to contract MA-012-22010839 with MRI Software LLC for Public Housing Agency Software System, 2/1/27 - 1/31/32 (\$844,169; cumulative total \$1,734,348); and authorize County Procurement Officer or Deputized designee to execute amendment - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY VICE CHAIR FOLEY, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

32. **OC Public Works** - Approve model contracts for heating, ventilation and air conditioning (HVAC) services (\$3,000,000 each; cumulative total \$9,000,000); painting services (\$1,000,000 each; cumulative total \$3,000,000); and plumbing services (\$2,000,000 each; cumulative total \$6,000,000), all for one-year terms and renewable for two additional one-year terms; **select** 3 respondents from solicitation results list for HVAC services, **select** 2 respondents from solicitation results list for painting services and **select** 2 respondents from solicitation results list for plumbing services; make related findings under Public Contract Code Section 20155.3(a); and authorize Director or designee to negotiate and execute contracts under certain conditions - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR WAGNER, SECONDED BY SUPERVISOR NGUYEN, APPROVED ITEM AS RECOMMENDED; SELECTED EXBON DEVELOPMENT, INC., PRIME ENC, INC. AND APPLIED AIR CONDITIONING, INC. FOR HVAC SERVICES; SELECTED PIANA CONSTRUCTION & PAINTING, INC. AND PUB CONSTRUCTION, INC. FOR PAINTING SERVICES; AND SELECTED EXBON DEVELOPMENT, INC. AND PRIME ENC, INC. FOR PLUMBING SERVICES

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

SUMMARY ACTION MINUTES

33. **OC Public Works** - Approve model contracts for electrical services (\$2,000,000 each; cumulative total \$6,000,000); roofing services (\$3,000,000 each; cumulative total \$9,000,000); and slurry and paving services (\$1,000,000 each; cumulative total \$3,000,000), all for one-year terms and renewable for two additional one-year terms; **select** 2 respondents from solicitation results list for electrical services, **select** 2 respondents from solicitation results list for roofing services and **select** 2 respondents from solicitation results list for slurry and paving services; make related findings under Public Contract Code Section 20155.3(a); and authorize Director or designee to negotiate and execute contracts under certain conditions - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR WAGNER, SECONDED BY CHAIR CHAFFEE, APPROVED ITEM AS RECOMMENDED AND SELECTED EXBON DEVELOPMENT INC. AND ABM ELECTRICAL & LIGHTING SOLUTIONS, INC. FOR ELECTRICAL SERVICES; SELECTED COMMERCIAL & INDUSTRIAL ROOFING CO., INC. AND EXBON DEVELOPMENT, INC. FOR ROOFING SERVICES; AND SELECTED BITECH CONSTRUCTION CO., INC. AND PALP INC. DBA EXCEL PAVING COMPANY FOR SLURRY AND PAVING SERVICES

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

34. **OC Public Works** - Approve amendment 3 to cooperative agreement MA-080-19010444 with City of Anaheim for funding, design, and construction for Brookhurst Street Widening, Phase 2 (cumulative total \$5,180,000); adopt resolution terminating maintenance responsibilities for westside of Brookhurst Street between Cerritos Avenue and Guinida Lane; and consider application of Mitigated Negative Declaration SCH No. 2010041037 and other findings - District 4 ([Click to View Files](#))

ON THE MOTION OF CHAIR CHAFFEE, SECONDED BY VICE CHAIR FOLEY, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley
Resolution No(s). 26-075

35. **OC Public Works - Acting as Orange County Flood Control District** - Approve model contract for construction manager at risk pre-construction services for Santa Ana River (E01) Avio Tide Gates Replacement Project; **select** and approve **respondent and alternate respondent** from solicitation results list; and authorize Director or designee to negotiate and execute contract - District 5 ([Click to View Files](#))

ON THE MOTION OF VICE CHAIR FOLEY, SECONDED BY SUPERVISOR WAGNER, APPROVED ITEM AS RECOMMENDED; SELECTED POWER ENGINEERING CONSTRUCTION CO AS RESPONDENT AND REYES CONSTRUCTION AS ALTERNATE RESPONDENT

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

SUMMARY ACTION MINUTES

36. **OC Public Works - Acting as Board of Supervisors and Orange County Flood Control District** - Approve amendment 1 and amendment 3 to renew contract MA-080-23011241 with various contractors for mitigation maintenance services, 10/12/26 - 10/11/28 (aggregate total \$1,500,000; cumulative aggregate total \$3,750,000); and authorize County Procurement Officer or Deputized designee to execute amendments - All Districts ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR WAGNER, SECONDED BY SUPERVISOR NGUYEN, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Wagner and Chaffee

Noes: Sarmiento and Foley

- S36A . **Supervisor Sarmiento** - Assessment Appeals Board No. 4 - Reappoint Steven Douglas White, Anaheim, for term ending 9/2/29 ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY VICE CHAIR FOLEY, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

- S36B . **County Executive Office** - Approve amendment 1 to Amended and Restated Option Agreement with Laguna Niguel Town Center Partners, LLC for two additional extensions to option term, to continue due diligence for lease and development of Laguna Niguel City Center Project on former South County Justice Center county-owned property; and authorize Chief Real Estate Officer or designee to execute amendment under certain conditions - District 5 ([Click to View Files](#))

BOARD ORDER, CONTINUED TO 10/13/26, 9:30 A.M.

- S36C . **Vice Chair Foley** - Assessment Appeals Board No. 3 - Appoint Vincent Howard, Newport Beach, to complete term ending 9/5/27 ([Click to View Files](#))

ON THE MOTION OF VICE CHAIR FOLEY, SECONDED BY SUPERVISOR SARMIENTO, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

- S36D . **Supervisor Sarmiento** - Approve sponsorship of various nonprofit entities from Second District events funds; approve addition or revision of events to FY 2026-27 County Events Calendar; make related findings under Government Code Section 26227; and authorize Auditor-Controller to make related payments ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY CHAIR CHAFFEE, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner and Chaffee

Abstained: Foley

SUMMARY ACTION MINUTES

- S36E . **Vice Chair Foley - Acting as Orange County In-Home Supportive Services Public Authority** - Orange County In-Home Supportive Services Advisory Committee - Appoint Sharon Matson, Costa Mesa, for term ending 9/28/30 ([Click to View Files](#))

ON THE MOTION OF VICE CHAIR FOLEY, SECONDED BY SUPERVISOR SARMIENTO, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

- S36F . **Supervisor Sarmiento** - Approve allocation of \$25,000 from Second District discretionary funds to Latino Health Access for non-partisan voter outreach and education programs; make related findings under Government Code Section 26227; authorize County Executive Officer or designee to negotiate and enter into agreement as necessary; and authorize Auditor-Controller or designee to make related payments ([Click to View Files](#))

ON THE MOTION OF SUPERVISOR SARMIENTO, SECONDED BY CHAIR CHAFFEE, APPROVED ITEM AS RECOMMENDED

Ayes: Nguyen, Sarmiento, Wagner and Chaffee

Abstained: Foley

- S36G . **Supervisor Sarmiento and Chair Chaffee** - Direct Health Care Agency and Auditor-Controller to conduct fee study for establishment and administration of Micro Enterprise Home Kitchen Operation (MEHKO) Program; and return to present findings upon completion ([Click to View Files](#))

ON THE MOTION OF CHAIR CHAFFEE, SECONDED BY SUPERVISOR SARMIENTO, CONTINUED TO 11/17/26, 9:30 A.M.

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

PUBLIC HEARINGS (None)

CLOSED SESSION (Items CS1-SCS4)

COUNTY DEPARTMENTS

- CS1. **County Executive Office** - CONFERENCE WITH LABOR NEGOTIATOR - Pursuant to Government Code Section 54957.6:
Agency Negotiator: Jamie Newton, Chief Human Resources Officer
Employee Organizations: Association of Orange County Deputy Sheriffs (AOCDS), Association of County Law Enforcement Managers (ACLEM), American Federation of State, County and Municipal Employees (AFSCME), Teamsters, and other non-represented employees
RE: Terms and Conditions of Employment ([Click to View Files](#))

BOARD ORDER, HELD, NO REPORTABLE ACTION

SUMMARY ACTION MINUTES

CS2. **County Executive Office - PUBLIC EMPLOYEE PERFORMANCE EVALUATION** - Pursuant to Government Code Section 54957(b):
Title: Clerk of the Board ([Click to View Files](#))

BOARD ORDER, HELD, NO REPORTABLE ACTION

CS3. **County Executive Office - PUBLIC EMPLOYEE APPOINTMENT** - Pursuant to Government Code Section 54957(b):
Title: Clerk of the Board ([Click to View Files](#))

BOARD ORDER, HELD, NO REPORTABLE ACTION

SCS4. **County Counsel - CONFERENCE WITH LEGAL COUNSEL - EXISTING LITIGATION** - Pursuant to Government Code Section 54956.9(d)(1):
Name of Case: Cyndi Utzman v. County of Orange, Orange County Superior Court Case No. 30-2020-01174005-CU-CR-CXC ([Click to View Files](#))

BOARD ORDER, HELD, NO REPORTABLE ACTION

PUBLIC, BOARD & CEO COMMENTS & MEMORIAL ADJOURNMENTS

PUBLIC COMMENTS:

Emily Goins - Oral Re: Santa Ana resident, former teacher, registered nurse, and friend of Brittany Shaw; addressed the Board regarding Shaw's killing on August 8, 2025 who was an Orange County mental-health clinician who served people in the county jail system; Shaw was shot nine times inside her home by her fiancée, an Orange County Sheriff's deputy and was only charged with involuntary manslaughter; asked to address the family's concerns, including the delay in the arrest, the deputy's administrative leave, and the reasoning behind the charges; criticized District Attorney Todd Spitzer's lack of meaningful public communication

Steve Rocco - Oral Re: Election officials unfairly handling voter-pamphlet biographies and the process could mislead voters; has repeatedly paid to run for county offices but received no biography space, while an opponent received 11 words; allegations against District Attorney Todd Spitzer, including election misconduct, abuse of office, and prosecutorial wrongdoing

Nick Kolev - Oral Re: Alleged privacy violations and tampering with county records after reviewing a file at the 17th Street facility on September 19; portions of the file were erased, personal Social Security and computer information was compromised, and computers and phone were disabled or damaged

Melissa Ault - Oral Re: Huntington Beach resident and friend of Brittany Shaw's family and friends; Shaw worked as an Orange County jail social worker and mental-health counselor and was mistakenly shot and killed by her fiancée, an Orange County Sheriff's deputy, on August 8, 2025; requested to examine the case, hold District Attorney Todd Spitzer accountable, ensure equal prosecution standards for law-enforcement officers, and oppose the accused's release on bail

SUMMARY ACTION MINUTES

Courtney Mayorga - Oral Re: Huntington Beach resident and friend of Brittany Shaw; urged the Board to reevaluate the evidence in Shaw's shooting death by her fiancée, Orange County Sheriff's Deputy Hidalgo; questioned whether the voluntary manslaughter charge adequately reflects the evidence; asked Supervisor Wagner to speak publicly, support a transparent review of potential murder charges, and address accountability for law-enforcement officers and the use of taxpayer-funded institutions

BOARD COMMENTS:

Chair Chaffee - Oral Re: Announced Fourth District's Kids Fishing Derby on October 17th from 8am to 11am at Ralph B. Clark Regional Park, Buena Park; RSVP at <https://bos4.oc.gov/fishingderby>; announced Building Family-Friendly Workplaces webinar hosted by Fourth District and First 5 Orange County on October 15th at 12pm; register at <https://bit.ly/4qAlggM> ([Click to View Files](#))

Vice Chair Foley - Oral Re: Announced the 19th Annual Orange County Senior Summit on October 23 from 9am to 1pm at The Ranch in Aliso Viejo, in partnership with CalOptima Health; registration required at bit.ly/kfseniorsummit or RSVP by calling 714-834-3550; congratulated Orange County on strong wage growth, noting the average weekly wages increased 4.3% in the first quarter of 2026, exceeding statewide and national growth rates ([Click to View Files](#))

Supervisor Nguyen - Oral Re: Announced sea turtle eggs were laid on Huntington Beach and Seal Beach and relocated by federal wildlife officials and Aquarium of the Pacific staff to a climate-controlled facility in Long Beach due to storm concerns; eggs are expected to hatch in about 60 days before the hatchlings are returned to the ocean; invited everyone to attend the Pacific Airshow in Huntington Beach, October 2-4, 10:00 am to 5:00 pm ([Click to View Files](#))

COUNTY EXECUTIVE OFFICER COMMENTS:

None

MEMORIAL ADJOURNMENTS:

ON THE MOTION OF VICE CHAIR FOLEY, SECONDED BY CHAIR CHAFFEE, ADJOURNED IN MEMORY OF JIM FERRYMAN

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

ON THE MOTION OF SUPERVISOR NGUYEN, SECONDED BY CHAIR CHAFFEE, ADJOURNED IN MEMORY OF ELIANA MORENO

Ayes: Nguyen, Sarmiento, Wagner, Chaffee and Foley

ADJOURNED: 2:42 P.M.

SUMMARY ACTION MINUTES

/s/
DOUG CHAFFEE
Chair, Orange County Board of Supervisors

ATTEST:

/s/
ROBIN STIELER
Orange County Clerk of the Board